

25NWLC51200 25NWLC51200

County: los-angeles

Division: Civil Law and Motion

Department: Z

Hearing date: 2026-06-25

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Case Number: 25NWLC51200 Hearing Date: June 25, 2026 Dept: Z

25NWLC51200: WELLS FARGO BANK, N.A. vs DANIEL E HERNANDEZ

The Court has read and reviewed the moving papers filed by Plaintiff in support of the Motion for Judgment on the Pleadings, including a meet and confer letter dated April 6, 2026.

The Court notes that Plaintiff has filed proof of service of this motion on Defendant at the same address Defendant listed on their Answer.

Pursuant to Cal. Evid. Code § 452 and § 453, the Court GRANTS the request for the Court to take judicial notice of:

The Complaint filed by Plaintiff on September 8, 2025;

The Order granting Plaintiff's Motion to Deem Requests for Admissions Admitted as to RFA # 1-8, entered on March 30, 2026; and

Request for admissions filed February 13, 2026, in support of Plaintiff's Motion to Deem Requests for Admissions Admitted.

The Court also takes judicial notice of:

Defendant's Answer filed on October 7, 2025.

The Court finds the Request for Admissions admitted cannot be reasonably controverted at this stage of the proceedings. The Request for Admissions admitted are tantamount to Defendant admitting the causes of action alleged by Plaintiff.

The Plaintiff's Motion for Judgment on the Pleadings is GRANTED as the complaint states facts sufficient to constitute a cause of action and the Answer in conjunction with the admissions deemed admitted does not state facts sufficient to constitute a defense.

The Court orders Judgement in favor of Plaintiff for the principal sum of \$8,631.67 and \$425.00 for costs. The Court will also award Plaintiff attorneys fees. Plaintiff has failed to establish the reasonable hours spent on the case and the reasonable hourly rate as required by the "lodestar method" pursuant to Civil Code section 1717. The Court will award fees pursuant to

Los Angeles Superior Court Local Rules, Rule 3.214, in the amount of \$760.53. For a judgment of \$8,631.67, the schedule dictates the following:

****First \$1,000.00:** 15% (\$150.00)**

****Remaining \$7,631.67:** 8% (\$610.53)**

Total Scheduled Fee: \$760.53

The total judgment ordered is \$8,631.67 for the principal, \$425.00 for the costs, and \$760.53 for attorney's fees, for a total judgment of \$9,817.20.